RESOLUTION NO. 26-092

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF CARSON, CALIFORNIA, CALLING FOR THE HOLDING OF A GENERAL MUNICIPAL ELECTION TO BE HELD ON TUESDAY, NOVEMBER 3, 2026 FOR THE PURPOSE OF SUBMITTING TO THE QUALIFIED VOTERS OF THE CITY A CHARTER AMENDMENT MEASURE INCLUDING AMENDMENT OF SECTIONS 301, 305, 306, 319, AND 907 OF, AND ADDITION OF NEW SECTION 320 TO THE CITY CHARTER, REQUESTING CONSOLIDATION WITH THE STATEWIDE GENERAL ELECTION TO BE HELD ON THE SAME DATE, AND REQUESTING THAT THE LOS ANGELES COUNTY REGISTRAR-RECORDER/COUNTY CLERK CONDUCT ALL NECESSARY ELECTION SERVICES

WHEREAS, the City of Carson ("City") is a charter city organized under the Constitution and laws of the State of California and the City's Charter, with a governance structure established through the City Charter, and amendments to the City Charter require voter consideration and approval; and

WHEREAS, pursuant to California Constitution Article XI, section 3, Government Code section 34458, and Elections Code section 9255, the City Council may propose amendments to the City Charter and submit the proposed Charter amendment to the voters at an established statewide general election; and

WHEREAS, an established Statewide General Election will be held on Tuesday, November 3, 2026; and

WHEREAS, trust in government and in elected leaders is supported by transparency and access to information by the voters whenever possible; and

WHEREAS, the City of Carson desires to enhance local government transparency and campaign accountability by requiring the Mayor and all City Council members to comply with California state campaign contribution disclosure laws, and providing that local reporting rules and dollar thresholds are never less stringent than those mandated by the state; and

WHEREAS, the City Council seeks to submit proposed amendments concerning local election laws for voter consideration by updating the City Charter to specify that the number of terms on the City Council is to be determined by voters at their discretion each election cycle, while preserving the current four-year term structure; and

WHEREAS, the City Council recognizes the importance of local voter participation in matters concerning the City's governance structure; and

WHEREAS, the proposed Charter amendments would modernize and clarify municipal voting operations by defining guidelines for both district-based and at-large elections, including representation requirements for Council members and the citywide election of the Mayor, while retaining the City Council authority to expand council representation if Carson's population exceeds 100,000 residents; and

WHEREAS, the City Council desires to align local governance processes with state law, by clarifying that any proposed special tax for specific purposes may be referred to the voters with a majority vote of the City Council, and must then be approved by a two-thirds majority vote of the electorate; and

WHEREAS, the City Council intends to update, clarify, and modernize the City's contracting procedures by allowing the City Council to authorize the City Manager to approve contracts on any subject

matter, provided such approvals comply with applicable federal, state, and local laws and such contracts remain transparently reviewable by the public; and

WHEREAS, the City Council seeks to clarify procedures applicable to municipal real property sales, transfers, or conveyance in fee transactions by requiring City Council approval while eliminating Planning Commission requirements; and

WHEREAS, the proposed amendments retain additional approval requirements for certain high-value public assets by requiring that any city-owned real property valued at more than $2,500,000 cannot be sold, transferred, or conveyed without a two-thirds affirmative vote of the City Council via ordinance or resolution; and

WHEREAS, the City Council finds that these proposed changes collectively serve to clarify, modernize, and clean up inconsistent or outdated language within the City Charter, thereby supporting efficient government operations, accountability, and oversight; and

WHEREAS, the City Council desires to submit a proposed Charter amendment measure including for amendment of City Charter Sections 301, 305, 306, 319, and 907, and addition of new Section 320, as set forth in Exhibit "A" to this Resolution, to the qualified voters of the City of Carson at the General Municipal Election to be held on November 3, 2026 (the "Charter Amendment Measure"), and to request that the Los Angeles County Board of Supervisors consolidate the Charter Amendment Measure with the statewide general election to be held on the same date and authorize the Los Angeles County Registrar-Recorder/County Clerk to conduct all necessary election services.

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF CARSON, CALIFORNIA, DOES HEREBY RESOLVE, DECLARE, DETERMINE AND ORDER AS FOLLOWS:

Section 1. That the City Council of the City of Carson, pursuant to its right and authority, hereby orders submitted to the voters at the General Municipal Election to be held on Tuesday, November 3, 2026, the following question:

Carson City Government Accountability, Charter Reform, No Tax Increase Measure. Shall the measure amending the Carson City Charter to require campaign contribution transparency; make the City Charter consistent with State law on referring ballot measures for voter approval; update term limits to increase voter options; clarify and clean up inconsistent or outdated language, be adopted?	YES
	NO

Section 2. That the text of the proposed Charter Amendment Measure that is to be submitted to the voters is attached as Exhibit "A" to this Resolution and incorporated herein by this reference as if set forth in full. The City's designated elections official is hereby authorized and directed to make any non-substantive, clerical, formatting, or conforming changes to this Resolution, the ballot question, and related election materials as may be required by the Los Angeles County Registrar-Recorder/County Clerk or by applicable law, provided that such changes do not materially alter the Charter Amendment Measure approved by the City Council for submission to the voters.

Section 3. That the vote requirement for the Charter Amendment Measure to pass is a

majority (50% +1) of the voters voting on the measure. If approved by a majority of the voters voting on the measure, the charter amendment shall be deemed ratified, but shall not take effect until accepted and filed by the California Secretary of State pursuant to Government Code Sections 34459 and 34460.

Section 4. That the City Clerk/City's designated elections official is authorized, instructed and directed to coordinate with the County of Los Angeles Registrar-Recorder/County Clerk to procure and furnish any and all official ballots, notices, printed matter and all supplies, equipment and paraphernalia that may be necessary in order to properly and lawfully conduct the election.

Section 5. That the ballots to be used at the election shall be in form and content as required by law, and that the election shall be held and conducted in the manner prescribed by law.

Section 6. Pursuant to California Elections Code Section 10242, the polls for the General Municipal Election shall open at seven o'clock a.m. on the day of the election, and shall remain open continuously from that time until eight o'clock p.m. of the same day when the polls shall be closed, except as otherwise provided in California Election Code Section 14401.

Section 7. That in all particulars not recited in this Resolution, the General Municipal Election shall be held and conducted in accordance with the provisions of law regulating municipal and statewide elections.

Section 8. That notice of the time and place of holding the General Municipal Election is hereby given and the City Clerk/City's designated elections official is authorized, instructed and directed to give further or additional notice of the election, in the time, form and manner required by law.

Section 9. That pursuant to Sections 10402 and 10403 of the Elections Code, the Los Angeles County Board of Supervisors is hereby requested to consent and agree to the consolidation of the submission of the Charter Amendment Measure at the General Municipal Election with the election conducted by Los Angeles County to be held on Tuesday, November 3, 2026.

Section 10. The City Council acknowledges that the consolidated election will be held and conducted in the manner prescribed in Elections Code Section 10418.

Section 11. That the Los Angeles County Registrar-Recorder/County Clerk is authorized to canvass the returns of the General Municipal Election. The election shall be held in all respects as if there were only one election, and only one form of ballot shall be used.

Section 12. That the Los Angeles County Board of Supervisors is requested to issue instructions to the Los Angeles County Registrar-Recorder/County Clerk to take any and all necessary steps for the holding of this consolidated election.

Section 13. That the City of Carson recognizes that additional costs will be incurred by Los Angeles County by reason of this consolidation and agrees to reimburse Los Angeles County for any costs upon presentation of a properly submitted bill.

Section 14. That the designated elections official is hereby directed to file a certified copy of this resolution with the Los Angeles County Board of Supervisors and the Los Angeles County Registrar-Recorder/County Clerk.

Section 15. If the Charter Amendment Measure is approved by a majority of the voters voting

on the measure, the City Clerk is authorized and directed to certify, authenticate, record, and file the approved Charter amendment as required by Government Code Sections 34459 and 34460.

Section 16. That the City Clerk shall certify to the passage and adoption of this Resolution and enter it into the book of original Resolutions. This Resolution shall be effective immediately upon passage and adoption.

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PASSED, APPROVED, AND **ADOPTED** this 4th day of August 2026.

APPROVED AS TO FROM:

Sunny K. Soltani, City Attorney

CITY OF CARSON:

Lula Davis-Holmes, Mayor

ATTEST:

Dr. Khaleah K. Bradshaw, City Clerk

STATE OF CALIFORNIA)
COUNTY OF LOS ANGELES) ss.
CITY OF CARSON)

I, Dr. Khaleah K. Bradshaw, City Clerk of the City of Carson, California, hereby attest to and certify that the foregoing resolution, being Resolution No. 26-092 adopted by the City of Carson City Council at its meeting held on August 4, 2026, by the following vote:

AYES:	COUNCIL MEMBERS:	Davis-Holmes, Hicks, Hilton, Rojas
NOES:	COUNCIL MEMBERS:	Dear
ABSTAIN:	COUNCIL MEMBERS:	None
ABSENT:	COUNCIL MEMBERS:	None

Dr. Khaleah K. Bradshaw, City Clerk

EXHIBIT A

CHARTER AMENDMENTS

CHARTER SECTIONS TO BE AMENDED (ADDITIONS SHOWN IN *BOLD ITALICS* AND DELETIONS IN ~~STRIKETHROUGH~~):

Note: Portions of the listed sections which are not shown below are not amended.

SECTION 301. Elective Officers; Indemnification.

The elective officers of the City shall consist of four city council members, one directly elected mayor, a city clerk, and a city treasurer***, either through at large or district elections, as determined by the city council. For any district elections,*** t~~he~~ members of the city council ~~and the mayor~~ shall be elected by the voters from ***their respective districts*** ~~the City at large~~ ***and the mayor shall be elected by a citywide vote*** at the time and in the manner provided in this Charter. ***For any at large elections, city council members and the mayor will be elected by a citywide vote.*** In the event that the population of the City exceeds one hundred thousand (100,000) residents, by resolution of the city council, the City may increase the elective officers of the City to six city council members, one directly elected mayor, a city clerk, and a city treasurer.

All elective officers shall serve for a term of four years and until their respective successors are elected and qualified. The elective officers in office at the time this Charter takes effect shall continue in office until the termination of their current terms and succeeding terms shall be likewise for four (4) years. ***There shall be no limit on the number of terms that elective officers may serve.*** The term of each elective officer shall commence no later than five days from the certification of the election results by the city council. Ties in voting among candidates for officer shall be settled by lot.

Elective officers and employees shall have the same indemnification rights as specified under California State law only.

SECTION 306. Vacancies.

B. Filling Vacancy. A vacancy on the city council, from whatever cause, may be filled by appointment by a majority of the remaining members of the city council, or by the calling of a special election if no appointment is made within sixty (60) days of the commencement of the vacancy. No person shall be eligible to fill a vacancy unless, at the time of appointment, they are a qualified elector of the City~~,~~ ***and*** have been domiciled in the City for at least sixty (60) days immediately preceding his or her appointment~~, and have not reached the term limit for city councilmembers pursuant to Section 305 of this Charter prior to, or during, their appointment to fill the vacancy~~. Any person appointed or elected to fill a vacancy on the city council shall serve the remaining unexpired term of the office. In the event it shall fail to fill a vacancy by appointment within sixty (60) days after such office shall become vacant, the city council shall cause an election to fill such vacancy to be held at the next available state election, but not less than 114 days from the call of the special election. The times and procedures for the calling of any special election to fill a city council vacancy may be established by City ordinance consistent with State law.

SECTION 319. Contracts; Property.

B. City Manager Authority to Contract. By ordinance or resolution the city council may authorize the city manager ***to approve any contract for any subject matter so long as such approval complies with applicable law. By ordinance or resolution the city council may also authorize the city manager*** to bind the City, with a written contract, including by purchase order, for the acquisition of equipment, materials, supplies, labor, services or other items included within the budget approved by the city council, and shall by ordinance impose a monetary limit upon such authority as authorized by this Charter.

D. Sale of Real Property. No real property of City ***may*** ~~shall~~ be sold, transferred or conveyed ***in fee*** without ~~a finding by the planning commission and~~ city council ***approval by resolution*** ~~as to the consistency of the sale with the general plan~~. Moreover, real property valued at more than two million five hundred thousand dollars ($2,500,000), may not be sold, transferred or conveyed except when approved by ordinance or resolution passed by a two-thirds affirmative vote of the city council.

E. Acquisition of Real Property. Any real property which is sold, dedicated, or transferred to City ***in fee*** must be accepted by resolution of the city council.

SECTION 907. Limitation on Tax Authority.

(2) Special Tax. The city council shall not impose, extend, or increase any special tax for specific purposes unless and until that tax is submitted to the electorate ***after a*** ~~by a two-thirds affirmative~~ vote of the city council ***consistent with state law*** and approved by a two-thirds vote of the voters. A special tax shall not be deemed to have been increased if it is imposed at a rate not higher than the maximum rate so approved.

CHARTER SECTION TO BE ADDED:

SECTION 320. Reporting of Campaign Donations.

Each City councilmember and mayor must comply with state disclosure laws for campaign donations. The City's local donation disclosure rules shall not be less stringent than those of the state; City may not increase the minimum donation reporting threshold to be higher than the dollar threshold required under state law.

CHARTER LANGUAGE TO BE REMOVED:

The City shall remove all references to a fixed year date contained in the provisions of the charter and Sections 305 and 907(4) shall be deleted in their entirety.